

CHAPTER 39

An Act to re-enact with modifications the Motor Car (International Circulation) Act, 1909; to amend the law relating to excise duty payable in Great Britain on vehicles licensed in Northern Ireland and in Northern Ireland on vehicles licensed in Great Britain; and for purposes connected with the matters aforesaid.
[1st August, 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Orders in Council for facilitating international traffic.

1.—(1) For the purpose of enabling effect to be given to any international agreement for the time being in force in respect of the United Kingdom, Her Majesty may by Order in Council make provision—

- (a) for the grant and authentication of any passes, certificates or other documents relating to vehicles or the drivers of vehicles which may be required for purposes of travel abroad by persons resident in the United Kingdom;
- (b) for modifying in relation to vehicles brought temporarily into Great Britain by persons resident outside the United Kingdom, and in relation to persons so resident who are temporarily in Great Britain, any enactment relating to vehicles or the drivers of vehicles.

(2) An Order in Council under this section may provide—

- (a) for modifying any such enactment as aforesaid in respect of matters appearing to Her Majesty to be incidental to or connected with the matters regulated by any such international agreement;
- (b) for extending any privilege conferred by the Order to persons resident outside the United Kingdom who are temporarily in Great Britain but are not entitled thereto by virtue of any such international agreement, or in relation to vehicles brought temporarily into Great Britain by such persons, being persons or vehicles satisfying such conditions as may be specified by or under the Order;
- (c) for the payment in respect of any such documents as are mentioned in paragraph (a) of subsection (1) of this section of such fees as appear to Her Majesty to be appropriate having regard to any services performed in connection therewith in pursuance of the Order,

(3) An Order in Council under this section may authorise the Minister of Transport to make regulations for any of the purposes of the Order; and the Statutory Instruments Act, 1946, shall apply in relation to any such regulations as if they were made under powers conferred by an Act of Parliament.

(4) An Order in Council under this section may be varied or revoked by a subsequent Order thereunder.

(5) No recommendation shall be made to Her Majesty in Council to make an Order under this section unless a draft thereof has been laid before Parliament and has been approved by resolution of each House of Parliament; and any statutory instrument containing regulations made under any such Order shall be subject to annulment in pursuance of a resolution of either House of Parliament.

2.—(1) The Governor of Northern Ireland may, by Order in Council of Northern Ireland, make provision in relation to Northern Ireland for any purpose for which provision may be made in relation to Great Britain under section one of this Act; and in relation to any such Order the provisions of that section (except so much of subsection (3) as applies to the Statutory Instruments Act, 1946, and except subsection (5)) shall apply accordingly as if for the reference in paragraph (a) of subsection (2) to Her Majesty there were substituted a reference to the Governor of Northern Ireland and as if for the reference to the Minister of Transport there were substituted a reference to the Ministry of Commerce for Northern Ireland.

(2) No recommendation shall be made to the Governor of Northern Ireland in Council to make an Order under this section unless a draft thereof has been laid before the Parliament of Northern Ireland and has been approved by resolution of each House of the Parliament of Northern Ireland; and every regulation made under any such Order shall be laid forthwith before each House of the Parliament of Northern Ireland, and if an Address is presented to the Governor of Northern Ireland within the period hereinafter mentioned praying that the regulation be annulled, the Governor of Northern Ireland in Council may annul the regulation and it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder.

(3) The period referred to in subsection (2) of this section is, in relation to either House of the Parliament of Northern Ireland, a period beginning with the day following that on which the regulation is laid before it and comprising ten days at least on which that House has sat, but not being in any case shorter in duration than twenty days; and days comprised in more than one Session of the Parliament of Northern Ireland may be reckoned for the purposes of this subsection.

Minor
amendments of
12, 13 & 14
Geo. 6. c. 89,
s. 7 and 10 &
11 Geo. 5. c. 18,
s. 13.

3.—(1) Subsection (3) of section seven of the Vehicles (Excise) Act, 1949 (which enables provision to be made by regulations for the exemption from the duty chargeable under that Act of mechanically propelled vehicles brought temporarily into Great Britain) shall have effect as if for the words “brought into Great Britain by persons making only a temporary stay in Great Britain” there were substituted the words “for the time being licensed under section thirteen of the Finance Act, 1920, or section nine of the Roads Act, 1920, in their application to Northern Ireland”.

(2) Subsection (5) of section thirteen of the Finance Act, 1920 (which in its application to Northern Ireland enables provision to be made by regulations for the exemption from the duty chargeable under that section of mechanically propelled vehicles brought temporarily into Northern Ireland) shall have effect as if for the words from “brought into” to the end of the subsection there were substituted the words “for the time being licensed under the Vehicles (Excise) Act, 1949”.

(3) Regulations made under the said subsection (3) or the said subsection (5) may—

- (a) make different provision in relation to vehicles of different classes or descriptions;
- (b) provide that any exemption conferred by the regulations in respect of any vehicle shall have effect subject to such conditions as may be specified in the regulations.

Repeals and
savings.

4.—(1) Subject to the provisions of this section, the enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(2) Any Order in Council in force immediately before the commencement of this Act under the Motor Car (International Circulation) Act, 1909, shall continue in force and have effect—

- (a) in relation to matters in respect of which an Order may be made by Her Majesty under section one of this Act, as if it were an Order so made;
- (b) in relation to matters in respect of which an Order may be made by the Governor of Northern Ireland under this Act, as if it were an Order so made by the Governor of Northern Ireland,

and may be varied or revoked under this Act accordingly.

(3) Any regulations in force immediately before the commencement of this Act by virtue of subsection (3) of section seven of the Vehicles (Excise) Act, 1949, subsection (5) of section thirteen of the Finance Act, 1920, in its application to Northern Ireland, or any enactment repealed by this section shall continue in force and have effect—

- (a) in relation to matters mentioned in paragraph (a) of subsection (2) of this section, as if made in pursuance of an Order made as so mentioned;

(b) in relation to matters mentioned in paragraph (b) of the said subsection (2), as if made in pursuance of an Order made as mentioned in the said paragraph (b),

and may be varied or revoked by regulations made in pursuance of an Order under this Act made by Her Majesty or the Governor of Northern Ireland, as the case may be.

5. For the purposes of section six of the Government of Ireland Act, 1920 (which relates to the powers of the Parliament of Northern Ireland to make laws) this Act shall be deemed to have been passed before the date appointed for the purposes of that section.

Powers of
Parliament of
Northern
Ireland.

6. In this Act—

“enactment” includes an enactment of the Parliament of Northern Ireland;

“regulations” includes rules, orders and other subordinate legislation;

“vehicle” means any mechanically propelled vehicle intended or adapted for use on roads and any vehicle drawn by such a vehicle;

and any reference to any enactment is a reference to that enactment as amended by or under any subsequent enactment.

7. This Act may be cited as the Motor Vehicles (International Circulation) Act, 1952, and shall come into operation on such day as Her Majesty may by Order in Council appoint.

Short title and
commence-
ment.

SCHEDULE

Section 4.

Session and Chapter	Short Title	Extent of Repeal
9 Edw. 7. c. 37	The Motor Car (International Circulation) Act, 1909.	The whole Act.
10 & 11 Geo. 5. c. 72.	The Roads Act, 1920.	Subsection (8) of section seven, as it applies in Northern Ireland.
20 & 21 Geo. 5. c. 43.	The Road Traffic Act, 1930.	In paragraph (i) of subsection (1) of section thirty, the words from “and for providing” to “this Act”.
12, 13 & 14 Geo. 6. c. 89.	The Vehicles (Excise) Act, 1949.	Subsection (3) of section sixteen.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Motor Car (International Circulation) Act, 1909	9 Edw. 7. c. 37
Finance Act, 1920	10 & 11 Geo. 5. c. 18
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67
Roads Act, 1920	10 & 11 Geo. 5. c. 72
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36
Vehicles (Excise) Act, 1949	12, 13 & 14 Geo. 6. c. 89

CHAPTER 40

Crown Lessees (Protection of Sub-Tenants) Act, 1952

ARRANGEMENT OF SECTIONS

Section

1. Crown exemption from Rent Control Acts not to extend to mesne tenants or assignees from Crown.
2. Consequential provisions.
3. Short title, interpretation, extent and commencement.

SCHEDULE.—Consequential Adaptation of Enactments.

An Act to abolish exemptions from the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939, the Rent of Furnished Houses Control (Scotland) Act, 1943, the Furnished Houses (Rent Control) Act, 1946, and the Landlord and Tenant (Rent Control) Act, 1949, which arise by reason of the subsistence of a superior interest belonging to the Crown, the Duchy of Lancaster or the Duchy of Cornwall. [1st August, 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Crown exemption from Rent Control Acts not to extend to mesne tenants or assignees from Crown.

1.—(1) Notwithstanding any rule of law excluding the operation of any of the Rent Control Acts where there subsists, or at any material time subsisted, an interest belonging to Her Majesty in right of the Crown or of the Duchy of Lancaster, or to the Duchy of Cornwall, or belonging to a Government department or held in trust for Her Majesty for the purposes of a Government department, the Rent Control Acts shall, subject